

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 291 of 2011

IN THE MATTER OF:

An application under section 115(1) of the Code of Civil Procedure.

(Against Judgment & Decree)

And

IN THE MATTER OF:

Shahana Akther and another

--- Plaintiff – Appellant- Petitioners.

-versus-

Mir Milon Hossain {during proceedings of the case opposite party No. 1, Mir Milon Hossain, died leaving behind his legal heirs as being opposite party Nos. 1(a)-1(c)} and another

--- Opposite Parties.

Mr. Moin Uddin with

Ms. Suraya Soumi, Advocates

--- For the Plaintiff-Appellant-Petitioners.

Mr. Sadhan Kumar Banik, Advocate

--- For the Opposite Parties.

Heard on: 11.12.2022, 16.01.2023 and 17.01.2023.

Date of Judgment: 23.01.2023.

At the instance of the present plaintiff-appellant-petitioners, Shahana Akther and another, this revisional application has been filed under section 115(1) of the Code of Civil Procedure and the Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 02.11.2010 and 05.11.2010 respectively passed by the learned Joint District Judge, Court No. 1, Manikgonj in the Title Appeal No. 35 of 2010

affirming the judgment and decree dated 17.01.2010 and 21.01.2010 passed by the learned Assistant Judge, Sadar Court, Manikgonj in the Title Suit No. 60 of 2002 should not be *set aside*.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present petitioners and their brother, namely, Mir Ashraf Hossain as the plaintiffs filed the Title Suit No. 29 of 2000 in the court of the learned Assistant Judge, Sadar, Manikgonj for partition of the suit land described in the schedule of the plaint and also for cancellation of the Heba Bill Deed No. 5148 dated 24.07.1986 and also for title upon the suit land. The plaint further contains that the suit land was originally owned and possessed by the mother of the plaintiffs, namely, Sahara Khatun and others by way of Heba Bill Ewaz Deed being No. 2270 dated 25.03.1985 who constructed a 2 storied building containing 8 rooms in the Municipality Holding No. 111 and she mutated the land by the concerned Tahsil Office by filing Mutation Case No. 563 of 85-86 and she was paying Municipality Tax/Rent (খাজনা). Sahara Khatun died on 31.10.1992 leaving behind a son being the plaintiff No. 1, and 2 daughters being the plaintiff Nos. 2 and 3 and her husband being the defendant No. 1. The plaintiffs further claimed that they have been the owners and in possession of the suit land and building constructed thereupon. Upon the suit property, the plaintiff No. 1 transferred his share to the plaintiff No. 2 by a registered Heba Bill

Ewaj Deed being No. 2213 dated 05.05.2004. After the death of Sahara Khatun the defendant No. 1 got married for the 2nd time and started to live with his 2nd wife in another place. In the year 2000 the defendant No. 1 (the husband of the deceased 1st wife Sahara Khatun) disclosed that his 1st wife (now deceased) made a deed of gift in his name regarding 4 decimals of land but the plaintiffs could not find out any documents thereabout after making require searchers, as such, the deed was forged and manipulated and Sahara Khatun never disclosed about the said Heba Deed created and never executed such kind of deed being Heba Deed No. 5148 dated 24.07.1986. However, the plaintiffs claimed that the defendant No. 1 is entitled to $\frac{1}{4}$ share only.

The present opposite party No. 1 as the defendant No. 1 contested the suit by filing a written statement denying the claims of the plaintiffs. The defendant also contended that Sahara Khatun was the owner and possessor of the suit land out of which she transferred 4 decimals land to her husband as defendant No. 1 by the registered deed dated 24.07.1986. The defendant No. 1 mutated the land in his name and got DCR as well as paying rent. The written statement contains the claim that Sahara Khatun was the only 'Benamder' (-বনামদার) of her husband (defendant No. 1) as the purchaser who purchased the suit land in his name, as such, plaintiffs did not have any entitlement by way of inheritance and

also plaintiff No. 1 never transferred her portion to the plaintiff No. 2 by the Heba Bill Ewaj Deed No. 2223 dated 05.05.2007. The present opposite party No. 2 as the defendant No. 2 contested the suit by filing separate written statement. Sahara Khatun was the owner and possessor of the suit land and she transferred 4 decimals of land to the defendant No. 1. The said Sahara Khatun died leaving behind her legal heirs her husband as the defendant No. 1, a son and 2 daughters, as such, the husband (defendant No. 1) acquired $5\frac{3}{4}$ (5.75) decimals of land by way of Heba Deed and by way of inheritance. As the husband has been the owner of the said measurement of land and the defendant No. 2 acquired a similar measurement of the land from the defendant No. 1 by a deed of exchange dated 10.10.2001 and the building was constructed by the defendant No. 1.

On receipt of the above suit the learned Assistant Judge, Sadar, Manikgonj heard both the parties and obtained documentary and oral evidence by way of depositions presented by the respective parties. The learned trial court thereafter decreed the suit in part by his judgment and decree dated 17.01.2010. Being aggrieved the present petitioners preferred the Title Appeal No. 35 of 2010 and the present opposite party No. 2 preferred the Title Appeal No. 46 of 2010 in the court of the learned District Judge, Manikgonj which

were heard analogously and decided by disallowing the appeal through the impugned judgment and decree dated 02.11.2010.

Challenging the legality and propriety of the said impugned judgment this revisional application has been filed under section 115(1) of the Code of Civil Procedure by way of a revisional application and this Rule was issued thereupon.

Mr. Moin Uddin, the learned Advocate, appearing along with the learned Advocate, Ms. Suraya Soumi on behalf of the petitioners, submits that the mother of the petitioners purchased the suit land and constructed a building containing 8 rooms thereon at her own cost and was living jointly with the plaintiffs in the suit land. The defendant No. 1 was living outside of the suit land and the mother of the petitioners did not gift the land to their father and the defendant No. 1 did not adduce and produce any evidence to prove the alleged deed of gift. Both the courts below without considering the evidence illegally decreed the suit in part by canceling the alleged deed of gift dated 24.07.1986, as such, both the courts below committed an error of law resulting in an error in the decision occasioning failure of justice.

He also submits that the opposite party No. 2 claimed $5\frac{3}{4}$ decimals of the suit land by way of an exchange deed dated 10.10.2001 from the opposite party No. 1 but he could not prove his possession in the suit land by alleged exchange deed and by oral

documentary evidence, whereas, the petitioners successfully proved the plaint case by disproving the alleged deed of gift, exchange deed and possession of the defendants in the suit land but the learned trial court without considering the same illegally decreed the suit in part out of his misconceived idea about the law and facts.

The Rule has been opposed by the present opposite party Nos. 1 (now deceased) and 2.

Mr. Jahangir Alam, the learned Advocate, appearing along with the learned Advocate, Mr. Sadhan Kumar Banik, for the opposite party Nos. 1 (now deceased) and 2, submits that the learned trial court examined the documentary evidence as well as the depositions of the parties made in court and also considering the legal position of the case came to a conclusion to decree the suit in part by allocating proportionate saham (সাহম) and thereby came to a lawful conclusion which was affirmed by the learned appellate court below in both the Title Appeal No. 35 of 2010 preferred by the present petitioners as the appellants and the Title Appeal No. 46 of 2010 preferred by the defendant No. 2 as the appellant Kazi Enayet Hossain which were heard analogously by the learned appellate court below and concurrently found that the learned trial court did not make any mistake by partially decreeing the suit by allocating respective saham (সাহম), as such, this court does not

require any interference upon the impugned judgment and decree passed by the learned appellate court below.

The learned Advocate also submits that the plaintiff-petitioners claimed their saham (সাহাম) of 8.02 decimals but as the plaintiffs failed to prove the deed of gift as false and created. Both the learned trial court and the learned appellate court below allocated saham (সাহাম) 5.687 decimals out of a total land of 10.75 decimals including the building structure thereupon, as such, this Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed by the plaintiff-petitioners under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree and also perusing the beneficial materials available in the records of the lower courts below, it appears to this court that the present plaintiff-petitioners and one Mir Ashraf Hossain as the plaintiffs filed a suit for partition and title and also for cancellation of the Heba Deed dated 24.07.1986. It further appears to me that the suit land admittedly owned by one Sahara Khatun who died leaving behind her husband being the defendant No. 1, a son and 2 daughters as the legal heirs of the suit property situated at Mouza No. 226- North Shewta, Police Station + District- Manikgonj. Both

the courts below considered this case as a suit for partition among the heirs of the original owner Sahara Khatun.

I have also noticed that after the death of the said Sahara Khatun, her husband got married to a 2nd wife and started to live separately from a son and 2 daughters and out of which 2 daughters, namely, Sahana Akter and Moon Moon Ara @ Mukta have been made parties. But the son has not been made a party on the ground that he transferred his land. The learned courts below principally have taken the matters of the Heba Deed No. 5148 dated 24.07.1986 regarding the land measuring 4 decimals in favour of the husband (defendant No. 1) by the owner Sahara Khatun, as such, the courts below properly examined the right by way of inheritance and the right acquired by way of conveyance executed by and between the parties.

The admitted position is that the said Sahara Khatun was the original owner and possessor of the suit land but there are disputes by and between the parties as to the right of the plaintiffs by way of inheritance and also the defendant No. 1 by way of the Deed of Heba which is under-challenge by the plaintiffs and also acquiring land by way of inheritance as the husband. The plaintiffs claimed that no deed was executed by the said Sahara Khatun for the defendant No. 1. However, DW-1, namely, Kazi Enayet Hossain made the statement in cross-examination that the defendant No. 1

did not pay the utility bills but the plaintiffs have been in possession, as such, the position of the building could not be proved by the defendant, rather, admitted position upon the building by the plaintiffs.

In view of the above depositions in cross-examination by the DW-1, namely, Kazi Enayet Hossain, the learned trial court partially decreed the suit on the basis of the following findings:

...“From the above deposition, it is admitted that neither the defendant No. 1 nor the defendant No. 2 is in possession of the suit land. On the other hand, admittedly the plaintiffs have been possessing the suit land. As a result, it can be decided that the plaintiffs have title to 5.62 decimals including the building attached thereto. They have been possessing it as well.”...

The learned appellate court below also examined the documentary and oral evidence by way of depositions and came to a conclusion to disallow the appeal concurrently on the basis of the following findings which are read as follows:

...“তপশী-ল ৭ শতাংশ জমির বিবরণ প্রদান করা হ-লও মোট জমির পরিমাণ ১০^৩/_৪ শতাংশ। পি.ডব্লিউ.- ১ তার জেরায় (পৃষ্ঠা-৫) ব-লন, ‘মানিকগ-ঞ্জর এই বাসায় ১০^৩/_৪ -ডসি-মল জমি আ-ছ। ডি. ডব্লিউ.- ১ তার জবানবন্দি-ত ব-লন, ‘মোট জমির পরিমাণ ১০^৩/_৪ ডিং’ কাজেই বিজ্ঞ নিম্ন আদালত সম্যক ১০^৩/_৪ শতাংশ ভূমি বাবদ পৃথক ছাহাম প্রদান ক-র মূল মোকদ্দমাটির proper and complete adjudication ক-র-ছন।”...

In view of the above discussions, I am of the opinion that the learned courts below committed no error of law by passing the

partial decree by allocating saham (সাহাম) of 5.062 decimals of land along with the 2-storied building thereupon out of total 10.75 decimals and the defendant No. 2 the present defendant-opposite party No. 2 has been allocating saham (সাহাম) upon the land measuring 5.687 decimals land out of the said total 10.75 decimals of land.

In view of the above, I am not inclined to interfere into the impugned judgment and decree passed by the learned appellate court below. As such, this Rule does not require any further consideration.

Accordingly, I do not find any merit in this Rule.

In the result, the Rule is hereby discharged.

The impugned judgment and decree dated 02.11.2010 passed by the learned Joint District Judge, Court No. 1, Manikgonj in the Title Appeal No. 35 of 2010 affirming the judgment and decree dated 17.01.2010 passed by the learned Assistant Judge, Sadar, Manikgonj in the Title Suit No. 60 of 2002 is hereby upheld.

The interim order of stay passed by this court at the time of issuance of the Rule as operation of the impugned judgment and decree dated 02.11.2010 passed by the learned Joint District Judge, Court No. 1, Manikgonj in the Title Appeal No. 35 of 2010 affirming the judgment and decree dated 17.01.2010 passed by the

learned Assistant Judge, Sadar, Manikgonj in the Title Suit No. 60 of 2002 is hereby recalled and vacated.

The pertinent section of this Court is hereby directed to send down the lower courts record along with a copy of this judgment and decision as soon as possible.